

25STCV34749 25STCV34749

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C08%2F18%2F2026

Source SHA-256: 5d681695d4c157258ebdbbee3bc7a696cd0c0dd90fe0a429f83dbb86430fc3a8b

Case Number: 25STCV34749 Hearing Date: August 18, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

SHAUN PETERSON,

Plaintiff,

vs.

STATE OF CALIFORNIA, et

al.,

Defendants.

Case No.:

25STCV34749

Hearing Date:

August 18, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF SHAUN PETERSON'S MOTION FOR
DISCOVERY PURSUANT TO EVIDENCE CODE § 1045

Background

Plaintiff Shaun Peterson ("Peterson") filed this action on December 1, 2025 against Defendants State of California, California Highway Patrol ("CHP"), Officer Christopher Bertz ("Bertz"), Officer Katherine Hendry ("Hendry"), Sergeant Jimmie Ryland ("Ryland"), and Sergeant Karen Costill ("Costill"), alleging five causes of action. On July 15, 2026, Peterson filed the operative first amended complaint ("FAC"), alleging six causes of action for (1) civil rights violation (Civ. Code §52.1), (2) false arrest, (3) battery, (4) intentional infliction of emotional distress, (5) negligence, and (6) negligent employment.

Peterson now moves for the California Highway Patrol to disclose records and documents relating to Defendant Officers Christopher Bertz, Katherine Hendry, Sargent Jimmie Ryland, and Sargent Karen Costill. CHP, Bertz, Hendry, Ryland, and Costill (collectively, "Defendants") oppose. Peterson replied.

///

///

Legal Standard

There is a special two-step procedure for securing disclosure of peace officer personnel records. ((Warrick v. Superior Court (2005) 35 Cal.4th 1011, 1019.) First, the party seeking disclosure must file a motion that identifies the peace officer, the agency in possession of the records, a description of the records, who is seeking the records, as well as the time and place of the hearing. ((Evid. Code, § 1043, subd. (b)(1).) The motion must be accompanied by a declaration showing "good cause" for disclosure of the records: setting forth the materiality of the records, and stating upon reasonable belief that the

governmental agency has the requested documents. (Evid. Code, § 1043, subd. (b)(3).) This is a so-called “Pitchess” motion, derived from *Pitchess v. Superior Court* (1974) 11 Cal.3d 531.

The Evidence Code section 1043,

subdivision (b) “good cause” declaration must be sufficiently specific “to preclude the possibility of [the movant] simply casting about for any helpful information.” ((*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.)) However, a declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a

Pitchess motion. ((*Haggerty v. Superior Court*

(2004) 117 Cal.App.4th 1079, 1086.)) The moving party need show only a “plausible factual foundation” for discovery—i.e., a

scenario of officer misconduct that might occur or could have occurred. (*Warrick v. Superior Court*, *supra*, at p.

1025.) All that is required is the

presentation of a scenario that might have or could have occurred, i.e.,

a “relatively low threshold.” ((*Uybungco v.*

Superior Court (2008) 163

Cal.App.4th 1043, 1048); ((see also *Blumberg v. Superior Court* (2011)

197 Cal.App.4th 1245, 1248 [the good cause requirement of section 1043(b)

“embodies a ‘relatively low threshold’ for discovery’ [citation], under which a

defendant need demonstrate only ‘a logical link between the defense proposed

and the pending charge’ and describe with some specificity ‘how the discovery

being sought would support such a defense”]); ((*Becerrada v. Superior Court* (2005) 131 Cal.App.4th 409, 413 [“A showing

of good cause is measured by ‘relatively relaxed standards’ that serve to

‘insure the production’ for trial court review of ‘all potentially relevant

documents.”]).)

Second, if the court finds good cause, then

an in camera hearing must be held. ((*Slayton*

v. Superior Court (2006) 146

Cal.App.4th 55, 61.) After personally

examining the records in camera, the trial court shall order disclosure of

peace officer personnel records that are “relevant to the subject matter

involved in the pending litigation.” (Evid. Code, §

1045, subd. (a); (*People v. Mooc*, *supra*, 26

Cal.4th at p. 1226.) If

disclosure is ordered, the court must also order that the disclosed information

may not be used “for any purpose other than a court proceeding pursuant to

applicable law.” (Evid. Code, § 1045, subd. (e).)

In terms of procedure, notice of the motion must be served in compliance with Code of Civil Procedure section 1005, subdivision (b), on the parties and on the governmental agency that has the records. (Evid. Code, § 1043, subd. (a).) The agency is required to notify the individual officer whose records are sought. (Evid. Code, § 1043, subd. (c); see also Evid. Code, § 1043, subd. (d) ["No hearing upon a motion for discovery or disclosure shall be held without full compliance with the notice provisions of this section except upon a showing by the moving party of good cause for noncompliance, or upon a waiver of the hearing by the governmental agency identified as having the records."].)

Discussion

As a threshold matter, Peterson's proof of service filed with the motion indicates that

"ROB

BONTA Attorney General of California QUINTIN LUCAS Supervising Deputy Attorney General RUSSELL EMMONS Deputy Attorney General ... Attorneys for Defendants CHP Officer Katherine Hendry, CHP Sergeant Jimmie Ryland, and Officer Christopher Bertz" were served with the motion. (Mot., 27:10-17.) However, the proof of service does not appear to indicate that any government agency with custody and control of the records was served. Nor does Peterson's motion or supporting declaration state that he sent written notice to the requisite governmental agency.

Under Evidence Code section 1043, subdivision

(a), "[i]n any case

in which discovery or disclosure is sought of peace or custodial officer personnel records or records maintained pursuant to Section 832.5 of the Penal Code or information from those records, the party seeking the discovery or disclosure shall file a written motion with the appropriate court or administrative body upon written notice to the governmental agency that has custody and control of the records, as follows:..." (Emphasis added.) Thus, Plaintiff failed to comply with the requisite procedural requirements under Evidence Code section 1043, subdivision (a) here.

Additionally, Defendants point out in their opposition that the "motion violates California Rules of Court, rule 3.1113(d).

Excluding the caption, tables, and declarations, the plaintiff's Memorandum of

Points and Authorities is 20 pages long. The plaintiff did not seek or obtain leave of court to file an oversized brief, as required by rule 3.1113(e)." (Opp., 1:21-24.) Defendants request that "[b]ecause the plaintiff circumvented the rules to file a brief five pages beyond the statutory limit, without the requisite showing of good cause, the Court should exercise its discretion to decline to consider the plaintiff's noncompliant memorandum entirely or, alternately, disregard any arguments presented past page 15." (Opp., 1:28-2:3.)

The Court concurs that Peterson's memorandum of points and authorities in support of the motion well exceeds the applicable page limit. Pursuant to California Rules of Court, rule 3.1113(d), "[e]xcept in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages. ... The page limit does not include the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service." (Emphasis added.) Here, Peterson's memorandum of points and authorities in support of the motion consists of 20 pages. Peterson does not appear to cite any Court order authorizing him to include additional pages in the memorandum of points and authorities.

Conclusion

In light of the foregoing, Peterson's motion is DENIED without prejudice.

Peterson is ordered to give notice of this Order.

DATED: 8/18/26 _____

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court